

every description in the same manner as if he were a natural born subject. But the Act is not retrospective (*g*).

5. **Distinctions in reference to equitable and legal interests.** It may be remarked that in certain cases persons are capable of taking an equitable interest, to whom the legal estate could not have been similarly limited.¹ Thus, at common law [until the recent Married Women's Property Acts] no property, real or personal, could be so limited to a married woman, as to exclude the legal rights of the husband during coverture: but, by way of trust, the beneficial interest [*46] could be placed entirely at the disposal of a * married woman, so that she should be regarded as a *feme sole*, and the husband should not participate in the enjoyment.

6. So the *legal* estate cannot be limited to the objects of a charity, as to the poor of a parish, in perpetual succession; but in a court of equity, where the feudal rules do not apply, the intention of the donor will be carried into effect (*a*), provided the requisitions of 9 G. 2. c. 36, be complied with. The act last referred to does not produce any incapacity in the *cestuis que trust* to take, but only prohibits the alienation of land, or property savouring of land, in any other mode than that prescribed by the act, for objects falling within the legal definition of charitable purposes.²

(*g*) *Sharp v. St. Sauveur*, 7 L. R. Ch. App. 350; [*De Geer v. Stone*, 22 Ch. D. 248.] (a) *Gilb. on Uses*, 204.

¹ A *cestui que trust* must have a capacity to take. *Trotter v. Blocker*, 6 Port. 269. It may be a trust for self and others. *Cocks v. Barlow*, 5 Rep. 406. If an infant is a *cestui que trust*, the principle of the fund may not be diminished except by order of court, but the infant is entitled to maintenance out of the fund, when his father is insolvent. *Bethea v. McCall*, 5 Ala. 308. The *cestui que trust* need not be in being at the time the trust is declared, if he is in existence at the death of his trustee for life. *Ashurst v. Given*, 5 Watts & S. 323. To determine who are *cestuis que trust*, see *Carson v. Carson*, 1 Wins. 24; *Noble v. Andrews*, 37 Conn. 346. The maxim "*nemo est haeres viventis*" applied. *Johnson v. Whiton*, 118 Mass. 340.

² In charitable trusts it is not necessary for the *cestui que trust* to be capable of holding a legal title; *Perry on Trusts*, Chap. XXIII. Trusts may be created for persons yet unborn; *Collins v. Hoxie*, 9 Paige, 81; *Ashurst v. Given*, 5 W. & S. 329; *Gardner v. Heyer*, 2 Paige, 11; *Carson v. Carson*, 2 Wins. (N. C.) 24; but not if immoral, or contrary to public policy; *Battlinger v. Budenbecker*, 63 Barb. 404; *Ownes v. Ownes*, 8 C. E. Green, 60; *Flint v. Steadman*, 36 Vt. 210; religious societies as *cestui que trusts*; *Bridgewater v. Waring*, 24 Pick. 304; *Rainier v. Howell*, 9 N. J. Eq. 121; *Lutheran Church v. Maschop*, 10 N. J. Eq. 57; *Presbyterian Cong. v. Johnston*, 1 Watts & S. 9; *Swedesborough Church v. Shivers*, 16 N. J. Eq. 453.